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SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Mr. Justice Yahya Afridi, CJ.
Mr. Justice Naeem Akhter Afghan
Mr. Justice Shakeel Ahmad

Civil Petition No. 5432 of 2025

(Against the order dated 27.10.2025, passed by the Lahore High Court, Lahore in WP No. 63433 of 2025)

Ghulam Habib

...Petitioner(s)

Versus

Mst. Shazia & others

...Respondent(s)

For the Petitioner(s) : Ch. Muhammad Ashraf Jalal,
ASC alongwith Syed Rifaqat
Hussain Shah, AOR

For the Respondent No.1 : Mr. Imran Muhammad Sarwar,
ASC.

Date of hearing : 04.05.2026

ORDER

SHAKEEL AHMAD, J.- Leave to appeal is sought against the order dated 27.10.2025, passed by the Lahore High Court, Lahore, whereby the Constitution Petition brought by the petitioner against the orders/judgments of the Courts below was dismissed.

2. Briefly, the respondent-wife instituted a family suit seeking recovery of dowry articles or, in the alternative, payment of their market value, alongwith recovery of maintenance allowance and other ancillary reliefs, as detailed in the prayer clause of the plaint. The trial Court, after appraising the evidence brought on record, partly decreed the suit vide judgment dated 18.11.2024 in the following terms:

“As a sequel of the above discussion, suit of plaintiff stands partly decreed in manner that:-

Except following items:

ڈاننگ ٹیبل شیشے والا بمعہ 8 عدد کرسیاں، VCR سونی،
الیکٹرونک مدھانی، گیس سلنڈر، بڑا چولہا بمعہ برنر، وال کلاک
2 عدد، Rado گھڑیاں کلائی والی 8 عدد مردانہ 4 عدد زنانہ،
واٹر سیٹ 3 عدد فینسی، واٹر سیٹ 2 عدد سادے، تورا 2 عدد
ثرے ککر، چکلنا بیلنا، واٹر کولر، ٹی پارٹ، پرات، سینی، چھاننا،
بالٹی، چائی (سٹیل) تھرماس، ٹفن، شیشے کا تھرماس، بڑا ٹب،

بالٹی، 2 عدد ٹوکریاں (پلاسٹک)، 1 عدد راس بھینس، 1 عدد کار
سوزوکی مارگلہ CC 1300 گرے کلر ماڈل 1998.

In the list Exh.P18 to Exh.P20, rest of claim is hereby decreed to the extent of articles only.

Plaintiff is entitled to get maintenance allowance @ Rs. 20,000/- per month from the date of discretion till the filing of the suit and @ Rs. 40,000/- afterwards till subsistence of marriage.

Plaintiff is also entitled to receive gold ornaments from the defendant as prayed for”

Feeling aggrieved by the judgment and decree of the trial Court, the petitioner preferred an appeal before the appellate Court, which was partly allowed vide judgment and decree dated 17.09.2025 to the extent that the decree for recovery of gold ornaments was reduced from 87 to 44 *tolas*. Still dissatisfied, the petitioner invoked the Constitutional jurisdiction of the High Court through Constitution Petition No. 63433 of 2025, which was also dismissed through the impugned judgment. Having remained unsuccessful before all the *fora* below, the petitioner has now approached this Court through the instant petition.

3. Heard and record examined.

4. The controversy before us lies at the intersection of dowry articles, bridal gifts, women’s proprietary rights and the jurisdiction vested in the Family Courts under the Family Courts Act, 1964 (**“the Act of 1964”**). The respondent-wife specifically asserted that at the time of marriage, her parents had gifted her gold ornaments weighing 87 *tolas* for her exclusive use and benefit. In the social realities of our society, jewellery and ornaments gifted to a bride are not merely ceremonial accessories but often also constitute a form of financial security and economic autonomy intended for the woman entering into marriage. Such property, irrespective of whether it is described as *jahez*, dowry, bridal gifts, or personal belongings, remains the exclusive property of the bride, over which neither the husband nor the in-laws can claim dominion. It is now a settled principle that any property given to a woman at the time of marriage by her parents, relatives, husband or in-laws, for her personal use

and benefit, vests absolutely in her. Ownership is not determined by nomenclature but by the intention underlying the transfer and the exclusive entitlement of the bride thereto. Consequently, any unauthorized retention, deprivation or misappropriation of such property by the husband or his family amounts to unlawful withholding of the wife's proprietary rights and entitles her to seek recovery through lawful proceedings before the competent Family Court.

5. The legislative scheme of Section 5 of the Act of 1964, read with the Schedule appended to the said Act, reflects a conscious and progressive recognition of women's economic and proprietary rights within the domestic sphere. The Statute confers exclusive jurisdiction upon the Family Courts in matters relating to dissolution of marriage, including *Khula*, dower, maintenance, custody and guardianship of children, dowry and significantly, the personal property and belongings of a wife. The inclusion of "*dowry*" and "*personal property and belongings of a wife*" as distinct entries in the Schedule demonstrates the legislative intent to secure effective and expeditious remedies for women deprived of property brought by them into the marriage or gifted to them during the subsistence thereof. The expression "personal property and belongings of a wife" is necessarily broad enough to encompass jewellery, gold ornaments, bridal gifts, and all such articles exclusively belonging to the wife. To hold otherwise would amount to reducing women's proprietary entitlements to mere customary claims dependent upon the will of the husband or his family, which would be contrary not only to the statutory framework but also to the Constitutional values of dignity, equality and protection of property. Family Courts, therefore, while exercising jurisdiction under the Act of 1964, are not merely adjudicating private domestic disputes but also are safeguarding protected economic rights and the financial security of women within the institution of marriage.

6. Even if the gold ornaments in question are described as bridal gifts, the determinative consideration remains whether they were given exclusively for the use and benefit of the bride. Once such an intention is established, the property unmistakably falls within the category of the wife's personal belongings, thereby attracting the exclusive jurisdiction of the Family Court under the Act of 1964.

Consequently, where the husband and the mother-in-law are alleged to have jointly retained, withheld or deprived the wife of such ornaments, a suit for recovery against both is fully maintainable before the Family Court. We are, therefore, of the considered view that gold ornaments gifted to a bride by her parents or relatives at the time of marriage, for her exclusive use and benefit, constitute her absolute property and any unauthorized taking or retention thereof by the husband or his family amounts to illegal deprivation of her proprietary rights, remediable through proceedings before the Family Court. Furthermore, the reliance placed by the learned counsel for the petitioner upon the case of *Muhammad Sajid*¹ is misconceived. In the said case, this Court held that articles presented to the family of the groom fall within the category of “presents” under the Dowry and Bridal Gifts (Restriction) Act, 1976, and do not constitute dowry articles or bridal gifts recoverable through Family Court jurisdiction. The factual matrix of the present case is materially distinguishable, since the gold ornaments claimed by the respondent-wife were given to her personally by her parents for her exclusive use and benefit. Such property squarely falls within the ambit of “personal property and belongings of a wife,” over which the Family Court possesses exclusive jurisdiction. The cited precedent is, therefore, inapplicable to the controversy before us.

7. For the foregoing reasons, we find no substance in the instant petition; the same is, therefore, dismissed and leave declined. No order as to costs.

Islamabad
04.05.2026

APPROVED FOR REPORTING
Zia/* Rameen Shahram LC

¹ Muhammad Sajid v. Shamsa Asghar (PLD 2025 SC 461)